

11 MAR 1991

Bill No. 48 of 1991

THE CONSTITUTION (SEVENTY-FIFTH AMENDMENT) BILL, 1991

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further to amend the Constitution of India.

BE it enacted by Parliament in the Forty-second Year of the Republic of India as follows:—

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| 1. This Act may be called the Constitution (Seventy-fifth Amendment) Act, 1991. | Short title. |
| 5 2. In article 356 of the Constitution, in clause (4), in the third proviso, for the words "four years", the words "five years" shall be substituted. | Amendment of article 356. |

STATEMENT OF OBJECTS AND REASONS

Under clause (4) of article 356 of the Constitution, no Proclamation issued under that article and approved by both the Houses of Parliament shall remain in force for more than three years. However, under clause (5) of the said article, a resolution approving the continuance in force of a Proclamation issued under clause (1) of that article beyond a period of one year cannot be passed by either House of Parliament unless the two conditions relating to a Proclamation of Emergency being in operation in the whole or any part of the State and the certificate by the Election Commission that the continuation of the Proclamation issued under clause (1) is necessary on account of difficulties in holding general elections to the Legislative Assembly of the State as specified in that clause are met. The three year period in the case of Proclamation issued on 11th May, 1987 with respect to the State of Punjab was extended to three years and six months by the Constitution (Sixty-fourth Amendment) Act, 1990 and clause (5) of article 356 was also suitably amended by that Act in the expectation that it would be possible to hold elections to the Legislative Assembly of that State. In October, 1990 it was felt that it was not conducive to hold free and fair elections to the Punjab State Legislative Assembly. Therefore, clause (4) of article 356 was again amended by the Constitution (Sixty-seventh) Amendment Act, 1990 to enable extension of President's Proclamation issued on 11th May, 1987 for a total period of four years.

2. Despite pressure from the security forces, the terrorist violence has been continuing in Punjab. Therefore, the prevailing circumstances still do not hold out prospects for fair, free and peaceful elections to the Legislative Assembly of Punjab. Clause (4) of article 356 of the Constitution is, therefore, proposed to be amended so as to facilitate the extension of the said Proclamation up to a total period of five years in relation to the State of Punjab.

3. The Bill seeks to achieve the above objects.

NEW DELHI;

The 7th March, 1991.

SUBODH KANT.

ANNEXURE

EXTRACT FROM THE CONSTITUTION OF INDIA

356. (1)

(4) A Proclamation so approved shall, unless revoked, cease to operate on the expiration of a period of six months from the date of issue of the Proclamation:

Provided that if and so often as a resolution approving the continuance in force of such a Proclamation is passed by both Houses of Parliament, the Proclamation shall, unless revoked, continue in force for a further period of six months from the date on which under this clause it would otherwise have ceased to operate, but no such Proclamation shall in any case remain in force for more than three years:

Provided further that if the dissolution of the House of the People takes place during any such period of six months and a resolution approving the continuance in force of such Proclamation has been passed by the Council of States, but no resolution with respect to the continuance in force of such Proclamation has been passed by the House of the People during the said period, the Proclamation shall cease to operate at the expiration of thirty days from the date on which the House of the People first sits after its reconstitution unless before the expiration of the said period of thirty days a resolution approving the continuance in force of the Proclamation has been also passed by the House of the People:

Provided also that in the case of the Proclamation issued under clause (1) on the 11th day of May, 1987 with respect to the State of Punjab, the reference in the first proviso to this clause to "three years" shall be construed as a reference to "four years".

Provisions
in case
of failure
of consti-
tutional
machinery
in States.

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Further to amend the Constitution of India.

(Shri Subodh Kant Sahay, Minister of State in the Ministry of Home Affairs.)